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APPLICATION FOR LEAVE TO PRESENT A LATE CLAIM

(Government Code § 911.4)

TO: Board of Directors, Alder Creek Transit District
1200 Alder Creek Way, Rivergate, California 91766
c/o Gordon Espinoza, Risk & Claims Manager
Attention: Clerk of the Board

FROM: Halstead & Cruz LLP
Nora Halstead, Esq. (SBN 369314)
88 South Grand Avenue, Suite 2400
Los Angeles, California 90071
(213) 555-0170 | nhalstead@halstead-cruz.com
Attorneys for Applicant Yolanda Reyes

DATE FILED: August 7, 2026

RE: *Application of Yolanda Reyes for Leave to Present a Late Claim Against the Alder Creek Transit District Arising Out of the Bus-vs-Pedestrian Collision of October 18, 2025*

Applicant Yolanda Reyes, by and through her counsel of record Halstead & Cruz LLP, respectfully applies to the Alder Creek Transit District (“the District”) for leave to present a late claim under Government Code § 911.4. The proposed claim arises out of injuries sustained on October 18, 2025, when applicant was struck as a pedestrian by an Alder Creek Transit District bus operated by Raymond T. Keeler. This application is filed within one year of the accrual of the cause of action, and is supported by the proposed claim and the accompanying declarations and exhibits.

Relief is sought principally under Government Code § 911.6(b)(4), and, in the alternative, under Government Code § 911.6(b)(1).

I. PROPOSED CLAIM — REQUIRED CONTENTS UNDER GOVERNMENT CODE § 910

Pursuant to Government Code §§ 910, 910.2, and 911.4(b), applicant tenders the following proposed claim and requests that, upon the grant of leave, the claim be deemed presented as of the date of the order granting leave.

1. Name and post office address of the claimant.

Yolanda Marisol Reyes
612 Poplar Street

Rivergate, California 91766

2. Post office address to which notices concerning the claim are to be sent.

Halstead & Cruz LLP
Attn: Nora Halstead, Esq.
88 South Grand Avenue, Suite 2400
Los Angeles, California 90071

All communications, notices, warnings, requests for additional information, allowances, rejections, and any other correspondence concerning this application or the underlying claim shall be directed to counsel at the address above.

3. Date, place, and other circumstances of the occurrence or transaction giving rise to the claim.

Date of occurrence: October 18, 2025, at approximately 02:05 a.m. Pacific.

Place of occurrence: Curbside pedestrian waiting area at the Alder Creek Transit District bus stop on South Main Street just north of its intersection with Third Avenue, in downtown Rivergate, County of Los Angeles, State of California.

Circumstances: At the time and place stated, applicant was lawfully present at the bus stop identified above, awaiting a District Owl-service bus, when a District Owl-service bus operating on Route 512, block ID 512-OWL, driven by District bus operator Raymond T. Keeler (badge #4417), left its designated travel lane on South Main Street, struck a City of Rivergate street-light standard immediately adjacent to the bus stop (knocking out the overhead lighting at the intersection), and then struck applicant, throwing her from the curb into the roadway and inflicting the injuries described below. On information and belief, and as reflected in a certified evidentiary blood-alcohol analysis performed by the Los Angeles County Sheriff's Department Scientific Services Bureau, operator Keeler was intoxicated at the time of the collision, and lost consciousness at the wheel. On April 2, 2026, operator Keeler entered a plea of no contest in *People v. Keeler*, LASC Case No. NA123456-01, to a felony violation of California Vehicle Code § 23153(a) (driving under the influence causing injury).

At all times material, operator Keeler was acting within the course and scope of his employment as a District bus operator, on his assigned Owl Route 512 tour, having clocked in for the shift on October 17, 2025 at 22:00 and being on the scheduled block at the scheduled downtown timepoint at the time of the collision. Liability of the District attaches under Government Code § 815.2 on principles of *respondeat superior* for the negligent operation of a District motor vehicle within the course and scope of employment, and under Vehicle Code § 17001.

4. General description of the indebtedness, obligation, injury, damage, or loss incurred so far as it may be known at the time of presentation of the claim.

As a direct and proximate result of the collision described above, applicant sustained catastrophic polytrauma, including but not limited to:

- Severe traumatic brain injury with diffuse axonal injury, prolonged coma, and persistent cognitive impairment in memory, attention, and executive function;
- Vertically unstable open pelvic ring disruption, requiring emergent external skeletal stabilization and subsequent definitive open reduction and internal fixation;
- Bilateral open comminuted tibia/fibula fractures, requiring reamed intramedullary interlocking nail fixation on the right and locking-plate reconstruction of the distal tibial pilon on the left, together with a pedicled gastrocnemius rotational flap and split-thickness skin graft for soft-tissue coverage of the left ankle;
- AAST Grade V splenic laceration with acute hemorrhagic shock, treated by damage-control laparotomy and total splenectomy (with resulting lifelong asplenia precautions);
- Intraperitoneal bladder-dome laceration with primary repair;
- Multiple right rib fractures with flail segment, right hemopneumothorax, and bilateral pulmonary contusions;
- Traumatic coagulopathy; ventilator-associated pneumonia; catheter-associated urinary tract infection; and ICU-acquired weakness.

Applicant was admitted on October 18, 2025 through the Rivergate Regional Trauma Center as a Level I trauma activation, underwent sixty-five days of continuous surgical intensive care, and was transferred on December 22, 2025 to the Alder Creek Neuro-Rehabilitation Institute for inpatient neurologic rehabilitation, where she remained an inpatient through April 6, 2026. She continues to receive outpatient rehabilitation and follow-up care and has not returned to work in her pre-injury occupation as a retail sales associate.

The claim seeks damages for past and future medical and rehabilitation expense, past and future lost earnings and lost earning capacity, past and future pain and suffering and other noneconomic loss, out-of-pocket expenses, and such other and further damages as may be recoverable under law.

5. Name or names of the public employee or employees causing the injury, damage, or loss, if known.

Raymond T. Keeler, District bus operator (badge #4417), and Does 1 through 50, whose true names and capacities are presently unknown, including without limitation District supervisory, dispatch, safety, training, and maintenance personnel whose acts or omissions may have contributed to the collision.

6. Amount claimed and basis of computation; unlimited-jurisdiction election.

The amount claimed exceeds \$10,000. Because the amount would require the claim to be tried in a court of unlimited civil jurisdiction, no specific dollar amount is stated in this proposed claim. Applicant so indicates as follows:

■ **The amount claimed exceeds \$10,000. If the claim were the subject of an action, jurisdiction over the action would rest in a court of unlimited jurisdiction, and applicant so indicates pursuant to Government Code § 910(f).**

II. STATEMENT OF REASON FOR LATE PRESENTATION

The claim of Yolanda Reyes was not presented within the six-month period specified in Government Code § 911.2 — which period, calculated from the date of accrual (October 18, 2025) and extended under Code of Civil Procedure § 12a because the sixth-month anniversary fell on a Saturday, closed on April 20, 2026 — by reason of applicant’s physical and mental incapacity arising out of the very injuries that give rise to the claim.

Applicant sustained a severe traumatic brain injury in the collision. She was thereafter continuously hospitalized under the surgical intensive care service of Rivergate Regional Trauma Center from October 18, 2025 through December 22, 2025; maintained in a medically induced coma with continuous deep sedation for cerebral protection during the first three weeks of that admission; and thereafter, for the balance of the acute course, in an agitated post-traumatic amnesic state. On November 10, 2025 the Los Angeles Superior Court, Probate Division, granted a temporary conservatorship of the person on a physician’s declaration that applicant was incapacitated and unable to make informed decisions regarding her own medical treatment. Applicant was thereafter transferred to inpatient neurologic rehabilitation, where she has undergone the slow, incremental recovery from severe traumatic brain injury described in the accompanying medical exhibits, and where she remained an inpatient through April 6, 2026. The treating physiatrist of record for the rehabilitation admission has opined that applicant lacked the decisional capacity to understand and manage personal, medical, financial, and legal affairs on her own behalf for much of the period from October 18, 2025 through approximately early February 2026, and, as further explained in Section III and in the attorney declaration below, remained materially impaired in her ability to prosecute this claim well after that date.

Applicant, through counsel, submits that these facts establish incapacity within the meaning of Government Code § 911.6(b)(4) and support the grant of leave to present a late claim.

Because the underlying delay arises from applicant’s physical and mental incapacity to prosecute her own affairs, applicant likewise requests, in the alternative, that leave be granted under Government Code § 911.6(b)(1) on the ground that the failure to present the claim within the six-month period was through mistake, inadvertence, surprise, or excusable neglect, and that the District has not been prejudiced. The District has been on constructive notice of the underlying facts since the moment of the collision — its own bus, its own operator, its own supervisory personnel on scene within minutes — and has been on actual notice of the claim of Ms. Reyes through the ACTD Risk & Claims Division at least since February 18, 2026, when its Risk & Claims Manager conducted a recorded interview of applicant concerning the incident. Applicant is prepared to make an additional showing of absence of prejudice on request.

III. DECLARATION OF REASONS FOR DELAY (GOV. CODE § 911.4(c))

Pursuant to Government Code § 911.4(b) and (c), applicant submits the accompanying Declaration of Nora Halstead, Esq., set forth in Section IV below, as the declaration of the reasons for the delay in presenting the claim. The following is a summary; the declaration and its exhibits control on any point

of discrepancy.

- The claim accrued on October 18, 2025. The six-month presentation period under Government Code § 911.2, as extended under Code of Civil Procedure § 12a, closed on April 20, 2026.
- Applicant is presenting this application on August 7, 2026, well within the one-year outer limit of Government Code § 911.4(b).
- Applicant was catastrophically injured and, in the medical opinion of her treating physiatrist of record, was cognitively incapacitated within the meaning of Government Code § 911.6(b)(4) for much of the presentation period. See Exhibit A (Physiatry Capacity Letter — Vasquez-Ortiz, MD, 05/10/2026); Exhibit B (Formal Neuropsychological Evaluation — Vandenberg, PhD, ABPP-CN, 02/03/2026); Exhibit E (Trauma Admission H&P, 10/18/2025); Exhibit F (SICU Hospital Course Summary, 12/22/2025); Exhibit G (Discharge Summary to Inpatient Neurologic Rehabilitation, 12/22/2025).
- A temporary conservatorship of the person of applicant was granted by the LASC Probate Division on November 10, 2025 (Case No. 25STPB09876) on a finding that applicant was incapacitated and unable to make informed decisions regarding her own medical treatment. See Exhibit C. That temporary conservatorship remained in effect throughout the acute-care admission and the earliest weeks of inpatient rehabilitation, and was terminated by order of the same court dated February 5, 2026 upon the stipulation of the parties and a physician's certification of restored decisional capacity. See Exhibit D. Applicant thereafter remained a full-time inpatient at the Alder Creek Neuro-Rehabilitation Institute through April 6, 2026, engaged in intensive multidisciplinary rehabilitation for the residuals of severe traumatic brain injury and complex orthopedic polytrauma.
- Applicant retained Halstead & Cruz LLP on March 5, 2026 by written contingency fee agreement executed while applicant remained an inpatient at the Alder Creek Neuro-Rehabilitation Institute. See Exhibit H. As set forth in the attorney declaration below, applicant remained cognitively and physically impaired in her ability to instruct counsel and to marshal the medical, employment, and eyewitness materials required to present a complete and compliant claim under Government Code § 910 for a significant period thereafter, notwithstanding the formal termination of her temporary conservatorship the preceding month.
- On February 18, 2026 the District's own Risk & Claims Manager, Mr. Gordon Espinoza, took an approximately forty-two-minute telephonic recorded statement from applicant while she was an inpatient in rehabilitation and unrepresented by counsel. The District has thereby had actual notice of applicant's identity, of the incident, and of her injury for approximately three months before the closing of the presentation window and for approximately three months before the filing of this application.
- The District cannot credibly claim prejudice from the delay. It possessed and possesses complete internal investigative materials from the collision itself, including without limitation its own driver's post-accident testing, its APC/farebox records, its AVL/GPS track, its dispatch records, its safety-department investigation and final incident report, its cost-of-repair records, its adjuster's reserve and coverage notes, and its recorded statement of applicant taken on February

18, 2026. Public and neutral materials — the Rivergate Police Department Traffic Collision Report, the county crime laboratory’s certified blood BAC analysis, the DOT post-accident test record, and the record of *People v. Keeler* — likewise remain intact and accessible.

IV. DECLARATION OF NORA HALSTEAD IN SUPPORT OF APPLICATION FOR LEAVE TO PRESENT LATE CLAIM

I, Nora Halstead, declare:

1. I am an attorney at law duly admitted and licensed to practice before all courts of the State of California, State Bar of California Membership No. 369314. I am a partner of the law firm Halstead & Cruz LLP, counsel of record for applicant Yolanda Reyes. I make this declaration in support of the accompanying Application for Leave to Present a Late Claim under Government Code § 911.4. Except as to those matters stated on information and belief, and as to those matters I so declare that I believe them to be true, I make this declaration of my own personal knowledge, and if called and sworn as a witness could and would competently testify thereto.
2. The claim accrued on October 18, 2025. The six-month period specified by Government Code § 911.2 for the presentation of a claim against a local public entity, as extended under Code of Civil Procedure § 12a because the sixth-month anniversary fell on a Saturday (04/18/2026), closed on April 20, 2026. No claim on behalf of Ms. Reyes was presented to the Alder Creek Transit District within that period. This application, presented on August 7, 2026, is within the one-year outer limit prescribed by Government Code § 911.4(b).
3. The underlying reason no claim was presented within the six-month period is that Ms. Reyes suffered a severe traumatic brain injury and catastrophic polytrauma in the very collision that gives rise to the claim, and, as a direct result of those injuries, was physically and mentally incapacitated within the meaning of Government Code § 911.6(b)(4) for much of the presentation period, and remained materially impaired in her ability to prosecute her own claim during the balance of that period.
4. Ms. Reyes was admitted to Rivergate Regional Trauma Center on October 18, 2025 with a Glasgow Coma Scale of 5 following field intubation, and was continuously hospitalized on the surgical intensive care service through December 22, 2025 (a sixty-five-day admission). During approximately the first three weeks of that admission she was maintained in a medically induced coma with continuous deep sedation for cerebral protection; thereafter she was in an agitated state of post-traumatic amnesia. She was, throughout the sixty-five-day admission, unable to communicate meaningful preferences concerning her medical care, let alone to give informed direction concerning the presentation of a legal claim. The trauma-service records reflecting this course are attached and incorporated as Exhibits E, F, and G.
5. On November 10, 2025, the Superior Court of California, County of Los Angeles, Probate Division, upon the petition of Ms. Reyes’s sister and next of kin, Ms. Marisela Reyes, and upon a supporting physician’s declaration by trauma surgeon Priya Ramaswamy, MD, granted a temporary conservatorship of the person of Yolanda Reyes on the express finding that she was

incapacitated and unable to make informed decisions regarding her own medical treatment. A conformed copy of the order granting the temporary conservatorship, LASC Case No. 25STPB09876, is attached and incorporated as Exhibit C.

6. On December 22, 2025 Ms. Reyes was transferred, still under the temporary conservatorship, to the Alder Creek Neuro-Rehabilitation Institute for inpatient neurologic rehabilitation. Her attending physiatrist of record for that admission, Helena Vasquez-Ortiz, MD, has provided a treating-physician statement, attached and incorporated as Exhibit A, opining to a reasonable degree of medical certainty that Ms. Reyes lacked the decisional capacity necessary to understand and to manage personal, medical, financial, and legal affairs on her own behalf as a result of her injuries for much of the period from October 18, 2025 through approximately early February 2026. Ms. Reyes was, on admission to the rehabilitation unit on December 22, 2025, oriented to self only, with no reliably measurable working memory or executive function. That statement is corroborated by the Formal Neuropsychological Evaluation of Marcus Vandenberg, PhD, ABPP-CN, dated February 3, 2026, and by the serial weekly interdisciplinary rehabilitation progress notes covering the admission, which are collectively attached and incorporated as Exhibit B.
7. On February 3, 2026 Dr. Vandenberg completed a formal neuropsychological evaluation which was submitted to the probate court in support of a stipulated request for termination of the temporary conservatorship. On February 5, 2026 the same probate court entered an Order Terminating Temporary Conservatorship of the Person, on the stipulation of the parties and upon the physician's certification of restored decisional capacity; the order noted that Ms. Reyes remained an inpatient at the rehabilitation institute pending completion of her physical rehabilitation. A conformed copy of the termination order is attached and incorporated as Exhibit D. While formal capacity was reported restored by the probate court in early February 2026, Ms. Reyes remained a full-time inpatient at the rehabilitation institute — engaged in daily multidisciplinary physical, occupational, speech, and cognitive rehabilitation for the residuals of severe traumatic brain injury and complex orthopedic polytrauma, non-weight-bearing on both lower extremities, and continuing to demonstrate documented cognitive deficits particularly in visuospatial, executive, and delayed-recall domains on serial cognitive testing.
8. On February 10, 2026 Ms. Reyes personally executed a HIPAA authorization directed to her acute-care and rehabilitation providers. That authorization initiated the process by which her medical records could begin to be gathered by anyone acting on her behalf; it did not by its own execution restore her to the functional condition required to prosecute a substantial personal injury claim against a public entity.
9. On February 18, 2026 a representative of the Alder Creek Transit District — Mr. Gordon Espinoza, its Risk & Claims Manager — conducted a telephonic recorded statement of Ms. Reyes, who was then still an inpatient at the rehabilitation institute and was unrepresented by counsel. The recorded statement was taken from Ms. Reyes on the District's initiative and without notice to any person acting in a professional capacity on her behalf. I have reviewed the certified transcript of that statement (ACTD file ID GE-2026-0218-01). It reflects a claimant who was able to answer

basic identifying questions and to describe, in general terms, what she had been told about the collision, but who repeatedly disclaimed personal memory of the accident itself, who could not reliably reconstruct the sequence of her ongoing medical care, and who was interviewed under circumstances that plainly did not reflect a claimant capable, on her own and unrepresented, of formulating and presenting a substantial personal injury claim against a public entity under the California Government Claims Act.

10. Ms. Reyes retained my firm on March 5, 2026 by written contingency fee agreement executed at her bedside during the inpatient rehabilitation admission. A conformed copy of the retainer agreement is attached and incorporated as Exhibit H. That retention was itself facilitated by her sister and family, who continued to serve as a functional support even after the formal termination of the temporary conservatorship. At the time of retention Ms. Reyes remained an inpatient at the rehabilitation institute, non-weight-bearing on both lower extremities, in daily multidisciplinary rehabilitation, and — as the serial neuropsychological documentation attached as Exhibit B reflects — with continuing measurable cognitive impairment in the domains most directly implicated in the ability to instruct counsel: attention, working memory, executive function, and delayed recall.
11. Upon retention my firm undertook to identify and gather the acute-care hospital record, the inpatient rehabilitation record, the neuropsychological workup, the operative reports, the itemized medical billing and lien materials, the employment and wage-loss materials, and the objective incident-scene, law-enforcement, and criminal-case materials required to present a claim that would comply with Government Code § 910 and would place the District on meaningful notice of the nature and general magnitude of Ms. Reyes’s claim. Given the scale of Ms. Reyes’s continuing rehabilitation admission, her continuing cognitive impairment, and the volume of source material implicated by a sixty-five-day intensive care admission followed by more than three months of inpatient neurologic rehabilitation, my firm made the professional judgment that the responsible course was to assemble the medical record sufficiently before presentation. That assembly, and Ms. Reyes’s own ability to instruct counsel with respect to it, developed on the same trajectory as her clinical recovery, which — as Exhibits A and B reflect — extended well beyond the formal probate finding of restored capacity in February and continued through her rehabilitation discharge in April.
12. Presentation of this application on August 7, 2026 follows the availability of the treating physiatrist’s capacity statement (Exhibit A, dated 05/10/2026), and is within the one-year outer limit of Government Code § 911.4(b).
13. The Alder Creek Transit District will suffer no prejudice from the grant of leave to present this claim. The District’s own bus, its own operator, and its own supervisory and dispatch personnel were on scene from the moment of the collision. It possesses, and has possessed since October 18, 2025, its own internal investigative materials, its post-accident DOT testing of its operator, its automatic passenger counter and farebox exports, its automatic vehicle location and GPS track, its dispatch communications and duty roster, its safety-department investigation and final incident report, and its risk-management reserve and coverage materials. It has additionally been in

possession, since February 18, 2026, of an approximately forty-two-minute recorded statement taken from Ms. Reyes by its own Risk & Claims Manager. The neutral and public materials — the Rivergate Police Department Traffic Collision Report, the county crime laboratory’s certified evidentiary blood BAC report on operator Keeler, the DOT post-accident test record, and the record of *People v. Keeler*, LASC Case No. NA123456-01 — remain intact, in the custody of their respective authoring agencies. No witness has been shown to be unavailable, no physical evidence has been shown to be lost, and no independent investigative avenue is shown to have been foreclosed by reason of the timing of this application.

14. On the basis of the foregoing, applicant submits that leave to present a late claim should be granted principally under Government Code § 911.6(b)(4), on the ground that Ms. Reyes was physically and mentally incapacitated during the presentation period and failed to present the claim by reason of that disability; and, in the alternative, under Government Code § 911.6(b)(1), on the ground that the failure to present the claim within the six-month period was through mistake, inadvertence, surprise, or excusable neglect arising from the same underlying incapacity and its continuing residual effects on Ms. Reyes’s ability to instruct counsel, and on the further ground that the Alder Creek Transit District has not been prejudiced by the delay.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on August 7, 2026, at Los Angeles, California.

/s/ Nora Halstead

NORA HALSTEAD (SBN 369314)

HALSTEAD & CRUZ LLP

Attorneys for Applicant Yolanda Reyes

V. RELIEF REQUESTED

WHEREFORE, applicant Yolanda Reyes respectfully requests that the Board of the Alder Creek Transit District:

1. Grant leave under Government Code § 911.4 to present the proposed claim set forth in Section I above;
2. Deem the proposed claim presented as of the date of the order granting leave, in accordance with Government Code § 912.2; and
3. Grant such other and further relief as is consistent with law.

Dated: August 7, 2026

Respectfully submitted,

HALSTEAD & CRUZ LLP

/s/ Nora Halstead

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Attorneys for Applicant Yolanda Reyes

EXHIBITS ATTACHED AND INCORPORATED BY REFERENCE

Ex.	Description	Date
A	Treating physiatrist statement re: cognitive capacity — Helena Vasquez-Ortiz, MD, Alder Creek Neuro-Rehabilitation Institute	05/10/2026
B	Formal Neuropsychological Evaluation (Vandenberg, PhD, ABPP-CN) and serial weekly interdisciplinary rehabilitation progress notes, 12/22/2025 – 04/26/2026	(composite)
C	Order Appointing Temporary Conservator of the Person — <i>In re Conservatorship of Yolanda Reyes</i> , LASC Case No. 25STPB09876	11/10/2025
D	Order Terminating Temporary Conservatorship of the Person — same case	02/05/2026
E	Rivergate Regional Trauma Center — Trauma Admission History & Physical (Ramaswamy, MD)	10/18/2025
F	Rivergate Regional Trauma Center — SICU Hospital Course Summary (Steinbach, MD)	12/22/2025
G	Rivergate Regional Trauma Center — Discharge Summary to Inpatient Neurologic Rehabilitation (Steinbach, MD)	12/22/2025
H	Attorney/Client Contingency Fee Retainer Agreement — Halstead & Cruz LLP / Yolanda Reyes	03/05/2026

PROOF OF SERVICE / DELIVERY

The undersigned certifies that on August 7, 2026 a true and correct copy of the foregoing Application for Leave to Present a Late Claim, together with the proposed claim, the declaration of Nora Halstead, and Exhibits A through H, was delivered to the Alder Creek Transit District by personal delivery to the Clerk of the Board at the District's principal offices, 1200 Alder Creek Way, Rivergate, California 91766, and additionally transmitted by first-class mail, postage prepaid, addressed to the Board of Directors at the same address, in care of Gordon Espinoza, Risk & Claims Manager.

/s/ Nora Halstead

NORA HALSTEAD (SBN 369314)

Halstead & Cruz LLP